

Application of Doctrine is a Jury Question

As the California Supreme Court long ago held, ordinarily “whether a person has been suddenly confronted with imminent peril is a question of fact to be submitted to the jury.” (*Leo v. Dunham* (1953) 41 Cal.2d 712, 715.) Likewise, the California Supreme Court has held that when faced by an emergency “it is a question for the trier of fact to determine whether the person acted with reasonable care under all the circumstances.” (*Reynolds v. Filomeo* (1951) 38 Cal.2d 5, 14 citation omitted.)

Later cases have confirmed this procedure. (See e.g. *Warren v. Sullivan* (1961) 188 Cal.App.2d 150, 154 [“[O]rdinarily, whether a person has been suddenly confronted with imminent peril, or whether such peril was brought about through her own negligence, is a question of fact for the jury.”]; *Damele v. Mack Trucks* (1990) 219 Cal.App.3d 29, 37 [“Whether the conditions for application of the imminent peril doctrine exist is itself a question of fact to be submitted to the jury.”]; *Desrosiers v. Flight Int’l* (9th Cir. Ct. of Appeal 1998) 156 F.3d 952, 958 [same].) It is a “rare case” where the rule applies at a summary judgment motion. (*Shiver*, supra, 24 Cal.App.5th at 397.)

Here, we do not have the ‘rare case’ where the Court can determine as a matter of law that the ‘sudden emergency’ doctrine applies. It is properly a question of fact for the jury to decide if the tire blowout was ‘sudden and unexpected’ and whether Mr. Ross’ acted as a ‘reasonably careful person would have acted in a similar situation.’

Conclusion

Defendant/Cross-Complainant, Damien Sean Lamont Ross’ Motion for Summary Judgment is **denied**.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Amazon and Sokolovski’s Objections: (Both parties make the same objections, so they are addressed together.)

Objection 1: Overruled.

Objection 2: Sustained (Cal. Evid. Code §§ 1200, 1400-1401; *Box v. California Date Growers Assn.* (1976) 57 Cal.App.3d 266, 270 [“Indeed, it is well established that traffic accident reports are not admissible in evidence.”])

Objection 3: Sustained (Cal. Evid. Code §§1400-1401; 1200.)

10. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

HEARING IN RE: JOINDER FOR MOTION FOR RECONSIDERATION OF ORDER GRANTING DAMIEN SEAN LAMONT ROSS'S MOTION FOR SUMMARY JUDGMENT

FILED BY: SOKOLOVSKI, EVGENY

TENTATIVE RULING:

See Line 9.